

Court No. - 40

Case :- WRIT - C No. - 24799 of 2023

Petitioner :- Anil Kumar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anil Kumar Singh, Pankaj Kumar Srivastava

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. On the request made by learned counsel for the petitioner, the case is passed over.
2. Put up this matter again on 01.08.2023 as fresh.

Order Date :- 28.7.2023

S.P.

Court No. - 40

Case :- WRIT - C No. - 24799 of 2023

Petitioner :- Anil Kumar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anil Kumar Singh, Pankaj Kumar Srivastava

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. The Advocates are abstaining from judicial work.
2. Put up this matter as fresh on 10.10.2023.

Order Date :- 13.9.2023

SP/

Court No. - 40

Case :- WRIT - C No. - 24799 of 2023

Petitioner :- Anil Kumar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anil Kumar Singh, Pankaj Kumar Srivastava

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for State respondent nos.1 and 2 and Shri Narendra Kumar Tiwari, learned counsel for the electricity department.

2. Present writ petition has been preferred for a direction to respondent nos.3 and 4 to give electricity connection in the petitioner's house.

3. Learned counsel for the petitioner submits that father of petitioner purchased the land in question in the name of mother of the petitioner and constructed a house over the said land. A partition took place between the petitioner and his younger brother with mutual consent and the electricity connection was taken by his younger brother. The petitioner and his brother are living with their family and made constructions on their part of the aforesaid house. A family dispute arose between the petitioner and his brother due to which his brother disconnected the electricity connection of the petitioner. Thereafter, the petitioner moved an application to the fourth respondent for grant of an electricity connection in his name and the survey was made by the officer concerned. The petitioner has completed all requirements and made the requisite payment on 12.6.2023 & 15.06.2023 for new electricity connection but he has not been given the electricity connection and is living in the said house alongwith his family without any electricity supply. In support of his submission, he has placed reliance on the judgement and order dated 24.9.2014 passed in Misc. Bench No.9588 of 2014 (**Smt. Sushama Chowdhary vs. U.P. Power Corporation Ltd. through Chairman & 4 others**).

4. On the other hand, learned counsel for the electricity department has produced the detailed instruction dated 27.7.2023 sent by the Executive Engineer of the department concerned, which is taken on record. On the basis of instruction, he has submitted that there is dispute between the petitioner and his mother. Once the lineman has gone to the house in question for installing the electricity cable, then the mother of the petitioner has obstructed the lineman.

She has also taken an objection that she is the owner of the house in question and she has not allowed the petitioner to get any electricity connection. It is submitted that there is a family dispute in the present matter and as such, the electricity connection could not be provided to the petitioner.

5. Section 43 (1) of the Electricity Act, 2003 provides that save and otherwise provided in the Act, every distribution licensee shall, on an application by the owner or occupier of any premises, give supply of electricity to such premises within one month after receipt of an application requiring such supply. Section 43 (1) of the Act of 2003 casts an affirmative obligation on the distribution licensee to supply electricity on an application being moved by the owner or occupier. A corresponding entitlement or right is conferred by the statute on the owner or occupier to require a supply of electricity. This legal position is not in doubt. In **Chandu Khamaru v. Smt. Nayan Malik** AIR 2011 SC 2897, the Supreme Court, while interpreting the provisions of Section 43 (1) of the Act of 2003, observed as follows:

"Sub-section (1) of Section 43 provides that every distribution licensee, shall, on an application by the owner or occupier of any premises, give supply of electricity to such premises, within one month after receipt of the application requiring such supply. These provisions in the Electricity Act, 2003 make it amply clear that a distribution licensee has a statutory duty to supply electricity to an owner or occupier of any premises located in the area of supply of electricity of the distribution licensee, if such owner or occupier of the premises applies for it, and correspondingly every owner or occupier of any premises has a statutory right to apply for and obtain such electric supply from the distribution licensee."

6. Again, in a subsequent part of the aforesaid decision, the Supreme Court emphasized the statutory right of an occupier and the corresponding statutory obligation on the distribution licensee to supply electricity. The Supreme Court observed as under:

"...The appellant has a statutory right to apply for and obtain supply of electricity from the distribution licensee and the distribution licensee has a corresponding statutory obligation to supply electricity to the appellant."

7. Clause 4.4 of the Electricity Supply Code 2005 is in aid of the statutory duty cast by Section 43 of the Act of 2003. As a matter of fact, an Indemnity Bond, a proforma of which is contained in Annexure 4.2 of the Code-2005, deals with a situation where an occupier of the premises applies for the grant of an electricity connection, but is unable to produce the consent of the owner. Obviously, in a situation, where a dispute is between the owner and occupier (in the present case, the dispute is between members of a family), a provision has been made for furnishing an Indemnity Bond.

8. In the facts and circumstances, the writ petition is **disposed of** with direction to the Executive Engineer-the third respondent that the petitioner shall, if so required, furnish an Indemnity Bond to the third respondent, within two weeks from today. The third respondent shall take all necessary steps to grant the application submitted by the petitioner for an electricity connection, subject to compliance of all other requirements. However, the third respondent shall not insist on the consent of the owner of the premises. Subject to the petitioner furnishing an Indemnity Bond within two weeks from today, we direct the third respondent to take all necessary steps to provide an electricity connection to the petitioner within two weeks thereafter.

Order Date:-10.10.2023

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